

Henley & Pace LLP

Solicitors

6 Carver Street, Sheffield S1 4FS

Tel 0114 270 1180 · DX 10595 Sheffield 1

litigation@henleypace.co.uk

Authorised and regulated by the Solicitors Regulation Authority — SRA No. 522894

1 December 2025

Mr George Bertram Dobbs

12 Linden Close

Sheffield

S11 8AP

Our ref: HEN/AR/2025-118 · Your ref: (LiP)

By post and (where indicated) by email

Dear Mr Dobbs,

Dobbs v Reeves · Claim no. K7QZ4318 · Single joint expert · CPR 35.7

We act for Mr Adrian Reeves, your neighbour and the named Defendant in the above-referenced claim. We acknowledge receipt of the Claim Form and Particulars of Claim issued out of the County Court at Sheffield on 4 November 2025.

Our client's position, which we will set out in detail when our Defence is filed and served, is that the damage to your garden wall, patio and path complained of is not, on any proper analysis, attributable to roots from the oak tree on his land. There are a number of plausible alternative explanations — long-term settlement of a 1960s wall on a clay sub-soil, the prolonged dry summer of 2022, and the ordinary wear and tear of a wall of approximately sixty years' age — and the question is one upon which the court is unlikely to be assisted by lay evidence alone.

The authorities (*Loftus-Brigham v London Borough of Ealing* [2003] EWCA Civ 1490; *Solloway v Hampshire County Council* (1981) 79 LGR 449) make clear that, in cases of this kind, the proper investigation of causation calls for expert evidence — typically from a chartered arboriculturist or structural engineer, sometimes both. The builder's quotation from Trentham Builders Ltd which we understand you intend to rely upon does not, with respect to Mr Webb, provide that evidence. Mr Webb expressly says in his email of 19 August 2025 that he is not a surveyor and cannot say for certain. We agree with him.

Our client is conscious that the sums in dispute are not large and that the costs of two competing experts would, very probably, exceed the value of the claim. We therefore write to invite you, pursuant to CPR 35.7, to agree to the instruction of a single joint expert (a chartered arboriculturist with relevant subsidence experience, our suggestion being an instruction by joint letter from the parties to Mr Edmund Throsby of Throsby Arboricultural Services or an equivalent practice) on terms that:

- (a) the expert is jointly instructed by the parties on a single agreed letter of instruction;
- (b) the expert's fee is shared equally between the parties (50/50), with either party at liberty to bear the whole cost in the event that the other is unable to do so;
- (c) the expert's report is to be the only expert evidence either party relies upon at trial; and

(d) the parties agree to seek the court's permission for the report under CPR 35.4 promptly upon receipt.

We are conscious that you are acting in person. We would urge you, before responding, to take advice from Citizens Advice or a local Law Centre. If you would prefer to instruct your own expert, that is of course a matter for you, but you should appreciate that the cost of doing so will fall upon you and that, if you choose not to obtain expert evidence at all, our client will be inviting the court to dismiss the claim on the basis that the evidential threshold on causation has not been met.

Please confirm your position within fourteen days, that is, by 4pm on 15 December 2025. In the absence of a response by that date we will assume you do not agree to a single joint expert and we will plead our client's position accordingly in the Defence (the time for filing of which is extended by agreement to 9 December 2025).

This letter is sent without prejudice save as to costs in accordance with the costs regime applicable on allocation.

Yours sincerely,

D. Henley

Dorothy Henley

Partner

Henley & Pace LLP